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Case Number: 23STCV17949 Hearing Date: September 10, 2026 Dept: 408

1.

Defendant/Cross-Complainants Drew Lakey and Kinston

Cummings's Motion for Final Approval of Class Action Settlement is GRANTED.

2.

Defendant/Cross-Complainants Drew Lakey and Kinston

Cummings's Motion for Attorney's Fees and Costs is GRANTED.

I.

BACKGROUND

On July 31, 2023, Plaintiff LA Laser Center, PC ("LA Laser Center") filed a complaint against Defendant Drew Lakey ("Lakey") alleging a cause of action for breach of contract.

On October 24, 2023, Lakey filed an answer and a Class Action Cross-Complaint against LA Laser Center.

On December 12, 2023, LA Laser Center filed an answer to Lakey's cross-complaint.

On August 29, 2024, the court granted Lakey's Motion for Leave to File a First Amended Cross-Complaint.

On September 4, 2024, Lakey filed a First Amended Cross-Complaint ("FACC").

On October 18, 2024, LA Laser Center filed an answer

to Lakey's FACC.

On July 2, 2025, the parties filed a Notice of Settlement of Entire Case.

On December 1, 2025, the parties filed a Stipulation for Leave to File a Second Amended Cross-Complaint.

On December 17, 2025, Cross-Complainants Lakey and Kinston Cummings ("Cummings", collectively "Cross-Complainants") filed a Second Amended Cross-Complaint ("SACC").

On April 21, 2026, the court granted Cross-Complainants' Motion for Preliminary Approval of Class Action Settlement.

On July 28, 2026, Cross-Complainants filed this Motion for Attorney Fees. No opposition or other responsive pleading has been filed.

On August 18, 2026, Cross-Complainants filed this Motion for Final Approval of Class Action Settlement. No opposition or other responsive pleading has been filed.

II.

MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT

A.

Legal
Standard

Approval of class action settlements occurs in two steps. First, the court preliminarily approves the settlement, and the class members are notified as directed by the court. (Cal. Rules of Court, rule 3.769, subd. (c), (f); Cellphone Termination Fee Cases (2009) 180 Cal.App.4th 1110, 1118.) Second, the court conducts a final approval hearing to inquire into the fairness of the proposed settlement. (Cal. Rules of Court, rule 3.769, subd. (e); Cellphone Termination Fee Cases, supra, 180 Cal.App.4th at 1118.)

“Before

final approval [of a class action settlement], the court must conduct an inquiry into the fairness of the proposed settlement.” (Cal. Rules of Court, rule 3.769, subd. (g).) The court must exercise its discretion to determine if the settlement is fair and reasonable to all involved. (Nordstrom Com. Cases, (2010) 186 Cal.App.4th 576, 581.) “A presumption of fairness exists where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (Ibid. [internal quotes and citations omitted].)

B.

Discussion

Cross-Complainants seek final approval of the proposed \$985,000 wage and hour Class, Collective Action, and PAGA Settlement Agreement entered into between the parties on behalf of a Settlement Class of 94 individuals currently or formerly employed as “Providers” by LA Laser Center in the position of physician assistant or nurse practitioner. (Motion, at p. 1.)

1.

Terms of Settlement

On July 2, 2025, the parties entered into the proposed Settlement Agreement after participating in mediation with Gail Glick, Esq. (Motion, at p. 6; Dai Decl., ¶¶ 2, 15, Exh. A.)

The Settlement Agreement provides for a Mass Settlement Amount (“MSA”) of \$985,000.00. (Motion, at p. 7; Dai Decl., ¶ 2.) The

parties have agreed to a disbursement of the MSA as follows: (a) payments to the Class Members composed of the members of the California Class and Non-California Collective; (b) Cross-Complainants’ request for reasonable attorneys’ fees of one-third of the Settlement fund (\$328,333.00); (c) litigation expenses of \$10,192.37; (d) a Class Representative service payment to Lakey of \$10,000.00; (e) a PAGA Representative service payment to Cummings of \$2,000.00; (f) administration fees and expenses of up to \$6,500.00; (g) \$30,000.00 in penalties under PAGA with 65% of the PAGA Penalties (\$19,500.00) being paid to the California Labor and Workforce Development Agency (“LWDA”) and 35% of the PAGA Penalties (\$10,500.00) being paid to Members of the

California Class who worked as Providers for Cross-Defendant between September 15, 2024, and April 21, 2026 (the "PAGA Period"); and (h) LA Laser Center's share of withholdings and payroll taxes (\$31,042.31). (Ibid.)

The Net Settlement Amount ("NSA") is approximately \$577,961.38. The NSA was then divided into a "PAGA Payout Fund" and a "Non-PAGA Payout Fund," with \$30,000.00 being allotted to the PAGA Payout Fund. The remainder is to be paid to the Class Members based on each individual employee's claims and number of weeks worked during the Class Period, which is from October 24, 2019, to April 21, 2026. (Id., at p. 15; Dai Decl., ¶¶ 6-7.)

2.

Class Certification

Before the court may approve the settlement, the settlement class must satisfy the normal prerequisites for class action. (Amchem. Products, Inc. v. Windsor (1997) 521 U.S. 591, 625-627.)² The party advocating class treatment must demonstrate the: (1) existence of an ascertainable and sufficiently numerous class; (2) well-defined community of interest; and (3) substantial benefits from certification that render proceeding as a class superior to the alternatives.³ (Brinker Restaurant Corp. v. Superior Court (2012) 53 Cal.4th 1004, 1021.)

The court previously determined that Cross-Complainants satisfied the prerequisite showing required for class certification in granting the motion for preliminary approval. The court incorporates its analysis in the preliminary approval motion for the class certification.

On June 12, 2026, the Settlement Administrator mailed out 92 individual notice packets. (Dai Decl., ¶ 22.) Class Counsel later identified two additional class members and mailed the necessary notice packets. (Ibid.) From the 94 notice packets provided to the Settlement Class Members, six were returned by the U.S. Postal Service without forwarding addresses. (Ibid.) The Settlement Administrator performed a skip-trace for those Settlement Class Members and found correct addresses for all six. (Ibid.) No Notice Packets remain undeliverable. (Ibid.)

The court finds that no

circumstances have arisen that undermine the propriety of the class and thus certifies the class.

3.

Fairness of Settlement

In determining whether a settlement is fair, the court considers all relevant factors, including the strength of the plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 128.) The recovery should represent a reasonable compromise, given the magnitude and apparent merit of the claims being released, discounted by the risks and expenses of attempting to establish and collect on those claims by pursuing the litigation. (Id., at 129.) Nevertheless, the strength of the case on the merits for the plaintiffs is the most important factor, balanced against the amount offered in settlement. (Id., at 130.)

The fact that a proposed settlement may only amount to a fraction of the potential recovery does not, on its own, mean that the proposed settlement is grossly inadequate and should be disapproved. (City of Detroit v. Grinnell Corporation (2d Cir. 1974) 495 F.2d 448, 455.) The test is not the maximum amount plaintiff might have obtained at trial on the complaint but, rather, whether the settlement is reasonable under all the circumstances. (Wershba, supra, 91 Cal.App.4th at 250.)

A presumption of fairness

exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small. (Cellphone Termination Fee Cases, supra, 180 Cal.App.4th at 1118.)

The average recovery for TRAP-related claims to California Class Members is approximately \$6,895.94, and the average recovery

for Non-California Collective Members is approximately \$2,883.58. (Dai Decl., ¶27.) Certain California Class Members will also receive additional payments for nonTRAP-related claims, and Aggrieved Employees will receive penalties under PAGA. (Motion, at p. 3.) The court incorporates its analysis of the Settlement Agreement set forth in the preliminary approval motion and finds that the terms of the Settlement Agreement are fair.

4.
PAGA Settlement

Labor Code section 2699(l)(2) provides that the court shall review and approve any settlement of any civil action filed pursuant to PAGA. (Lab. Code, § 2699, subd. (l)(2).) Section 2699(l)(2) requires submission of the proposed settlement to the Labor Workforce and Development Agency ("LWDA") at the same time it is submitted to the court. (Ibid.) Any settlement of any civil action filed under PAGA must be "fair and adequate in view of the purposes and policies of the statute." (Flores v. Starwood Hotels & Resorts Worldwide, Inc. (C.D. Cal. 2017) 253 F.Supp.3d 1074, 1077.)"

Per Assembly Bill 2288 and Senate Bill 92 modifying Labor Code section 2699 et. seq., "civil penalties recovered by aggrieved employees shall be distributed as follows: 65 percent to the Labor and Workforce Development Agency for enforcement of labor laws, including the administration of this part, and for education of employers and employees about their rights and responsibilities under this code, to be continuously appropriated to supplement and not supplant the funding to the agency for those purposes; and 35 percent to the aggrieved employees." (Lab. Code, § 2699, subd. (m).) This amendment does not have a retroactive effect, and "shall not apply to a civil action with respect to which the notice required by subparagraph (A) of paragraph (1) of subdivision (a), paragraph (1) of subdivision (b), or subparagraph (A) of paragraph (1) of subdivision (c) of Section 2699.3 was filed before June 19, 2024." (Lab. Code, § 2699, subd. (v)(2).) Thus, any LWDA notice predating June 19, 2024, shall apply the former rule of 75% to LWDA and 25% to aggrieved employees.

The Settlement Agreement provides that \$30,000.00 of the MSA is allocated to the PAGA penalties, with \$19,500.00 as payment to the

LWDA for resolution of the PAGA claims and the remaining \$10,500.00 allocated to PAGA Group Members regardless of whether they opt out of the class claims. (Motion, at p. 16.) Based on the terms of the Settlement Agreement and allocation of the MSA to the LDWA as described above, the court finds that the settlement agreement complies with Labor Code section 2699(m) as amended.¿

5.

Class

Representative/Service Award

The motion seeks final approval of a service award of \$10,000.00 to Lakey for acting as class representative in this action and \$2,000.00 to Cummings for acting as PAGA representative. (Motion, at pp. 17-19.) The court approves such amounts based on Cross-Complainants participation in this litigation.

¿

6.

Attorney's Fees and Costs¿

Any agreement, express or implied, that has been entered into with respect to the payment of attorney's fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action.¿(Cal. Rules of Court, rule 3.769, subd. (b).)

Ultimately, the award of attorney's fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate.¿(PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096.)¿In common fund cases, the court may utilize the percentage method, cross-checked by the lodestar.¿(Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.)¿Despite any agreement by the parties to the contrary, the court has an independent right and responsibility to review the attorney fees provision of the settlement agreement and award only so much as it determined reasonable.¿(Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

Cross-Complainants

seek approval of attorney's fees in the amount of \$328,333.00 and costs in the amount of \$10,192.37. (Motion, at p. 19.) As set forth below, the court approves the requested amount in attorney's fees and costs.

III.

MOTION FOR ATTORNEY'S FEES AND COSTS

A.

Legal

Standard

A

prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).) "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.)

B.

Discussion

Cross-Defendants

move the court to award \$328,333.00 in attorney's fees comprised of \$310,085.00 in lodestar time with a 1.05 multiplier equating one-third of the proposed \$985,000 class and collective action settlement, plus \$10,192.37 in costs.

(Motion, at

p. 6.) The court also notes that the motion is unopposed. (Cal. Rules of Court, rule 8.54, subd. (c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

1.

Authority

for Fees & Prevailing Party

a.

Legal

Standard

Attorneys' fees are allowed as costs when authorized
by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10)(B).)

b.

Discussion

The parties entered into a settlement agreement in the
amount of \$985,000.00, on July 2, 2025. (Motion, at p. 3.) The Settlement Agreement provides that
Cross-Complainants may seek up to 35% of the total settlement as attorneys'
fees and costs. (Dai Decl., ¶ 9, Exh. 1.) As such, Cross-Complainants are the prevailing party and are
entitled to request counsel's reasonable attorney's fees and costs.

2.

Method

of Calculation for Fees

a.

Legal

Standard

In

determining a reasonable attorney fee, the trial court begins with the
lodestar, i.e., the number of hours reasonably expended multiplied by the
reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30
Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors
specific to the case in order to fix the fee at the fair market value of the
legal services provided. (Ibid.) These facts include (1) the novelty and
difficulty of the questions involved, (2) the skill displayed in presenting
them, (3) the extent to which the nature of the litigation precluded other
employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

b.

Discussion

Considering

that Cross-Complainants do not propose a different method for calculating fees,
the court uses the lodestar adjustment method.

3.

Reasonableness
of the Fees Claimed

a.

Reasonableness
of the Hourly Rates and Number of Hours

i.

Legal Standard

“The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437 [citations omitted].)

“Under

the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [cleaned up].)

ii.

Discussion

Cross-Complainants'

counsel claims the following hourly rates and number of hours incurred in litigating the instant action:

(Motion, at p. 7.)

Based on the evidence set forth in the supporting declarations regarding the qualifications of each attorney who billed time in this matter, the reasonableness of counsels' hourly rates, the complexity of negotiating this case, and the results obtained, the court finds that an attorney's fees are reasonable.

b.

Reasonableness
of Multiplier

i.

Legal Standard

Relevant

factors to determine whether an enhancement is appropriate include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

ii.

Discussion

Cross-Complainants

request that a multiplier of 1.05 be applied to the combined lodestar of \$310,085.00 resulting in a total of \$328,333.00 in attorney's fees, i.e. one-third of the proposed \$985,000 class and collective action settlement. (Motion, at pp. 11-12.)

The

court finds that an award in the amount of one-third of the MSA is warranted. Such amount is reasonable given the facts of this case and is consistent with fee awards in class actions. (Chavez v. Netflix, Inc. (2008) 162 Cal.App.4th 43, 66, n. 11 ["Empirical studies show that, regardless whether the

percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.”].) Accordingly, the court will grant a 1.05 multiplier for a total recovery in attorney's fees of \$328,333.00.

4.

Reasonableness
of the Costs Claimed

Cross-Complainants
request \$10,192.37 in costs incurred in litigating this matter. (Motion, at pp. 12-13.)

The court further
finds that the costs incurred were reasonable and necessary to carry out the representation in this matter. As such,
the court will award \$10,192.37 in costs.

IV.

CONCLUSION

1.

Defendant/Cross-Complainants Drew Lakey and Kinston Cummings's Motion for Final Approval of Class Action Settlement is GRANTED.

2.

Defendant/Cross-Complainants Drew Lakey and Kinston Cummings's Motion for Attorney's Fees and Costs is GRANTED.